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# THE BROKEN MIDDLE: GILLIAN ROSE AND PAUL AGAINST THE EMPTY SACRIFICES OF MODERNITY

## 1.

In her 1992 masterpiece, *The Broken Middle*, the philosopher Gillian Rose explored what she saw as a baleful crisis of ethics in modern political discourse playing itself out in the malaise and violence of contemporary urban life. Rose believed the root of this crisis was a 'diremption' between ethics and metaphysics; a misrecognition in which both became blind to the mutual implication of each other in political life and theory. This split was instantiated by a fracture in the language of philosophy and theology, and in the broad institutional failures – indeed, the inherent violence – of contemporary political regimes. Her ire focused primarily on western liberal democracy; a political form she thought foreclosed the complications of a middle space of encounter between the legal state and the real *polis*, where people navigate the sheer givenness of the mundane, everyday experience of working out their fragile ethical commitments, in favor of a totalitarian administration of an absolute, autonomous law over and against any claim of subjective particularity or peculiarity.[1]

Surely no glance at the last thirty years of western politics would lead anyone to challenge her observation of a looming – now prevailing – crisis in political thought and life. In the face of this, the question Rose asks us to contemplate is not how to mend the brokenness of the middle space, for attempts to, "…provide a solution that sutures the diremptions of modern life, such as morality and legality, religion and the state, because those fields… already arise out of the process of diremptions."[2] Rather, what Rose wants is for us to recognize how attempts by either modern neo-liberalism and post-modern thought to close the broken middle space of encounter "…between the potentiality and actuality of the world, between universal and particular, between freedom and un- freedom, between legality and

[1] Anthony Gorman, "Gillian Rose's Critique of Violence." *Radical Philosophy* 197 (June 2016), 25.

[2] Marcus Pound, "Rose Contra Girard: Kenotic Comedy and Social Theory (or, Zizek as a Reader of Rose)," in *Gillian Rose and the Task of Political Theology* (Eugene, OR: Cascade Books, 2018), 80.

morality"[3] result in a premature closure of the real lived spaces of co-belonging and co-becoming of different truth claims and ways of being.[4]

The point of Rose's critique is to support the proposition that it is precisely in this important middle space of brokenness and possibility that we find the wisdom of a narrow way where neither the easy 'euphoria' of absolute truth or absolute contingency rule the day, but rather through an acknowledgement of the fundamental brokenness of our shared 'middle' spaces the real work and struggle of political life – life together – can begin. Rose's middle is not a fantasy of stateless individuals in totally free, unbounded association. Rather, her middle is a space in which a person's particular activities and situation sit in direct relationship with the legal state apparatus as a whole and thereby become a 'public affair' in a way that both legitimizes the individual subject as one in relation with the public and legitimizes the legal society as a whole through its instantiation by the individual.[5] The middle is broken because it is imperfect; imperfect precisely because temporal law derived from the real, ever fluid ethics of subjective encounter is a requirement for preserving the status of the subject and the civility of the society.

In addition to tracing and reflecting on Rose's observations of the rot at the root of life in neoliberal, capitalist modernity, I believe Rose's recognition of this diremption and loss of the 'broken' middle lines provides a new entrance into the eschatology of the Apostle Paul; whose importance for deeply philosophical political projects has only grown more pronounced in recent years.[6] In *The Broken Middle*, Rose offers an incisive critique of the limits of the modern political-ethical imaginary. By reading this critique along with the Apostle Paul, we can add his constructive grammar of resistance to the pernicious euphoria of totalitarianism or nihilistic utopianism through the new body politic in the broken body of Christ in precisely the middle space between 'heaven' and 'earth' Rose thought it should exist.

This may seem an odd pairing at first glance owing to Rose's own (I would argue, misguided) suspicion of Paul's role in establishing what she called "a philosophical tradition of opposition between law and grace".[7] But of course, Paul does not set these in opposition but shows how grace fulfills and perfects

[3] Kate Schick, *Gillian Rose: A Good Enough Justice* (Edinburgh: Edinburgh University Press, 2012), 44.
[4] Gillian Rose, *The Broken Middle: Out of Our Ancient Society* (Oxford: Blackwell, 1992), xv.
[5] Ibid., 303.
[6] See: Ward Blanton and Hent de Vries, eds. *Paul and the Philosophers* (New York City: Fordham University Press, 2013).
[7] Rose, *The Broken Middle*, 307.

law. So in setting them as conversation partners we might open a path through which, as Ward Blanton describes it, we could return again to, "…rewired ancient spiritual exercises, little practices of remaining stuck, tarrying with the stuckness itself as the only site from which a properly philosophical logos of self-obstructing totality might be–must be–enunciated… that enterprise which neither overcomes nor compromises with paradox by obscuring it or making it profitability management."[8]

2.

Around 8:00 pm on May 25, 2020, a man named George Floyd was killed by another man, Derek Chauvin, in Minneapolis, Minnesota. What transpired between the two men may have passed unnoticed like countless other homicides were it not for the stark way their respective roles in the community laid bare the limited political possibilities of our society's ethical imaginary. Derek Chauvin was a white police officer, an enforcer of the law, a reification of the absolute punitive power of the modern neo-liberal state. George Floyd was an African American man, the quintessential scapegoat of present-day American society on which all the sins of racist, juridical violence and class struggle — what Gillian Rose saw as the cornerstones of modernity — are imparted.[9] As George Floyd breathed his last on the potted asphalt of Minneapolis' East 38th Street, a real son from a real community, one set on the margins of society's abstract power structures, was killed by the law's real, embodied police power.

What happened next exemplifies precisely what Rose saw as the result of a centuries long malaise wrought by the loss of any politics of the broken middle by a retreat into abstract technocratic liberal cosmopolitanism. Her story in *The Broken Middle* is that with the fall of the old feudal bonds of corporations and guilds which exemplified ancient 'civil society', modern city dwellers have no options beside centrally planned police state or libertarian individualism; totalitarianism or radical, bondless pluralism.[10] The modern city, in her words, "…intensifies these perennial diremptions in its inner oppositions between morality and legality, society and state, and the outer opposition, so often now inner, between sovereignty and what Rousseau called 'power', and which we call 'nations and nationalism'".[11] Without these mediating institutions there is no middle space for mutual,

[8] Ward Blanton, *A Materialism for the Masses: Saint Paul and the Philosophy of Undying Life* (New York: Columbia University Press, 2014), 98.
[9] Rose, *The Broken Middle*, 182.
[10] Fergus Kerr, "Review of *The Broken Middle: Out of our Ancient Society*, by Gillian Rose." *Sociology* 27, no. 2 (1993), 366.
[11] Rose, *The Broken Middle*, 286.

collective recognition of a foundational subjectivity and personhood undergirded by the legal formation of society.[12] Instead, we are left with only 'sanctified' original individuals or a totalizing whole in which the subject is disintegrated in favor of an absolute utopia.

The discourse around George Floyd's death franticly swung, and still does, between proclamations of murder or just violence by the law, a kind of sacrifice to the law. In this quarrel, law and personhood never touch; instigating a crisis in which naked power and violence are given a claptrap ethical veneer before collapsing into either nihilism or totalitarianism. Floyd is not allowed to be simply murdered. He must be sacrificed. While these positions appear to be two sides in opposition in their understanding, the attempt to transfigure Floyd into a scapegoat sacrifice reveals itself to be the janus face of neo-liberal totalitarianism playing itself out at both the level of thought and of lived experience in way that perpetuates the 'disasters of modernity'.[13]

The collective righteous indignation of secular liberalism at his murder reinstates the premise of nothing beyond the absolute law by attempting to raise Floyd up as a scapegoat sacrifice who can 'justify' the violence of the law through blood sacrifice and heal the trauma. According to Rose, this attempt to make meaning out of something meaningless, to prematurely close the brokenness of the encounter in the middle space between law and subject, is a refusal of the "…universal or social law which would classify [the] sacrifice as "murder"[14], instead attempting by "just violence" the transfiguration of the specific victim, George Floyd, into the, "…unanimous sacrificial solution to social crisis."[15] The sacrifice is not beyond the law, it is the foundation of the law.

During the protests in Minneapolis, and indeed around the United States, Floyd's murder did not merely represent but virtually became the sum of all police injustice, all racial and class inequality and struggle. Yet despite this attempt at a transubstantiating ritual, Floyd's death remained a murder. The agony could not be overcome because ritual violence is inherent in the totalitarian system of relations. The public discourse attempts to "pit the sacrifice against law"[16] by claiming a double movement in which, "…the ethical expression for what [was done] was... murder... the religious expression was... sacrifice."[17]

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[12] Nigel Tubbs, "Mind the Gap: The Philosophy of Gillian Rose." *Thesis Eleven* 60, no. 1 (February 2000), 53.
[13] Schick, *Gillian Rose: A Good Enough Justice*, 57.
[14] Rose, *The Broken Middle*, 149.
[15] Ibid., 136.
[16] Ibid., 100.
[17] Søren Kierkegaard, *Fear and Trembling*. (New York, N.Y: Penguin Books, 1985), 60.

But this ritual, "…disavowal of... violence" through the scapegoat sacrifice would also require the disavowal of the very law it is attempting to satiate.[18] If there is no law, then Floyd's death at the hands of Chauvin cannot be called a murder. If his death is sacrifice, then his murder is just under the law.

Here Rose helps us draw out the full contradiction: if Floyd's death is sacrificial, Derek Chauvin is not guilty of murder. The sacrifice is a ritual beyond the law. But, if there is no murder, the sacrifice is not necessary to take away with it all the sins and impurities of the community. If the sacrifice is unnecessary then Floyd cannot truly be a scapegoat, and the sacrifice is nothing more than murder. However, if it is murder, then the ritual sacrifice must be made. Surely Floyd's death cannot serve a double function. Violence under the punitive regime of the totalitarian neo-liberal police state begs for justice for the individual under the law to preserve order; to legitimize the individual's status as a subject through the law. Yet it also yearns to set the sacrifice beyond the law, beyond subjectivity, and outside the community through the act of making them a nameless sacrifice. The result of this contradiction is a collapse of the whole system of relations into either abstraction and meaninglessness or mimetic repetition.

Rose, riffing on Kierkegaard's *Fear and Trembling,* suggests the scapegoat ritual is an endeavor via sacrifice to classify all human relations as derivative of an absolute, primordial law. But as Kierkegaard notes, an absolute law also calls for full disclosure, for the externalization of any particularity; there can be no secrets before the universal absolute, no 'just between you and me'.[19] For the sacrifice to stand for all, "…the whole of human existence [must be] entirely self-enclosed, as a sphere" in which "the ethical is at once the limit and completion."[20] In the scapegoat ritual no relation can be particular. All relations are held at the abstract level of the faceless 'other' of the absolute. There is no me before you, only each of us alone before the law. The most tragic violence of the scapegoat sacrifice then is not in the physical death of the victim, but the annihilation of the victim's subjectivity when they become the scapegoat in order to become the faceless 'other' underpinning the totalitarian system of relations.

It follows then that in right wing descriptions of the Floyd's murder the law must prevail. There is no outside the law, no holy altar on Mt Moriah where murder can be called sacrifice, and there is therefore no sense in offering a sacrifice to try and overcome the law. The law is all there is. As Fergus Kerr notes in

[18] Rose, *The Broken Middle*, 137.
[19] Kierkegaard, *Fear and Trembling*, 97.
[20] Ibid., 96.

his reading of *The Broken Middle*, "…when feudalism was overthrown, civil society (corporations and guilds and so forth) disappeared, leaving individuals face to face with nothing but the state."[21]

Rose knows the aphasia of this constant competition and collision, "… the more the middle is eroded, the more its illusion proliferates… With no 'reality, we have as 'individuals' only a perpetually embattled and changing actuality."[22] And she continues, "Having lost all sureness of political discrimination, we no longer know where power resides – in all institutions, in the theoretical comprehension and critique of them, in ourselves, ontically or reflexively; even less, when it is legitimate, when illegitimate, when non-legitimate; least of all, how it is articulated and reconfigured."[23]

3.

The more subtle effect of the loss of the broken middle is on forms of resistance to this totalitarianism in what Rose saw as postmodern ideologies of pure individualism and unbounded pluralism. What she read in the literature of postmodernity is a desire to overcome the distinction between law and ethics, power and community, that – just as the scapegoat ritual – only perpetuates the same categories of either law or individual, institution or "holy community".[24] For Rose this reveals an antinomianism present in postmodern thought that is, just as any political community founded on the alternative hegemony of the state, unable to seed any mediatory spaces between individuals and institutions by setting all relations beyond the law in some originary space of pure being.

Derrida's reading of the Moriah incident is illustrative of Rose's critique of what can be called postmodern responses to the broken middle. In his essay "Above All, No Journalists", Derrida highlights the despair of the unmediated divine voice, the abnegation of any sort of ethical possibilities:

> "What must God have said to Abraham? What did he tell him, necessarily, at the moment when he gave him the order to climb Mount Moriah… what happens here, my summons and your response, your responsibility ("Here I am!")–all of this must remain absolutely secret: just

[21] Kerr, "Review of *The Broken Middle: Out of our Ancient Society*, by Gillian Rose", 366.
[22] Rose, *The Broken Middle*, 297.
[23] Ibid., 297.
[24] Rose, *The Broken Middle*, 297.

> between us. It must remain unconditionally private, our internal affair and inaccessible…"[25]

It is not merely that Abraham must now obey this law of silence, it is that he has no other recourse. Despite his presence with God on Mt Moriah, Abraham does not become the mediating authority; even he is rendered mute. Speech for him is silence now, the incomprehensibility and therefore the silence of the voice of God creating a crisis of the subject as the "I-Thou" relation fades into interiority of "I", rendering the subject mute as well.[26]

For Derrida, attempts at shared meaning made by any sort of exegesis of the event, even in ritual sacrifice, is a futile attempt to find a presence that was always an absence at the heart of the event. The problem of non-presence here is felt not only in the absence of the divine voice, but in the absence of the voice of Abraham after his encounter with the divine. His encounter does not affirm his singular status. It obliterates his subjectivity by rendering him dumb. Every encounter in this holy space becomes a trek up Mt Moriah in search of some divine voice that might validate the other in the relation. But each person, upon reaching the summit, finds it is always their own personal Mt Moriah they have climbed, and from it they can bring nothing back. They stand alone at the summit in relation only to themselves. In the absence of any mediatory institutions that might guarantee authentic 'i-thou' subjectivity the only conclusion is a nihilistic individualism.

It is telling that many details of the incident in Minneapolis remain concealed, and no narrative has yet emerged which might finalize the matter. Indeed, to the present moment new details, videos, and witnesses are continuing to come forward that attempt to steer the discourse one way or another, to 'uncover' the truth. Rose sees this silence, the *Deus absconditus*, devolve either into a Derridean nihilism because of the untranslatability of a message with no author – "I want to see if, even in the most extreme ordeal, the possible (demanded) death of your favorite son, you will be able to keep secret the absolutely invisible, singular, unique relation that you are to have with me" [27], or totalitarianism because of the necessary institution of panoptical law to discipline the recipients into this silence to protect the secret of the absence, "…the Law has become our *paidagōgos*."[28]

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[25] Jacques Derrida, "Above All, No Journalists." in *Religion and Media* (Stanford, CA: Stanford University Press, 2001), 56.
[26] Vítor Westhelle. *Eschatology and Space: The Lost Dimension in Theology Past and Present* (New York: Palgrave Macmillan, 2012), 6.
[27] Derrida, "Above All, No Journalists", 57.
[28] Galatians 3:24.

Rose asserts, "…this is the… ethical task for the age" the "beginning of anxiety" and the "anxiety of beginning"[29] in the disjunction between the "deepest misery of the individual and the ethical universal demand."[30] One cannot lose oneself to gain the world, nor can one lose the world and gain the self. The loss of either is the loss of both. Justice and innocence cannot both be had.[31] Here on the mountain, a wide street in an insignificant American suburb, atop the Moriah looming above us all the "arbitrary, binary myths" of an agon of nature and freedom, law and grace demand the invention of a "…passage from violence to the holy"[32], a "…passage from the non-ethical to the ethical."[33]

4.

Is it not true, though, that many individuals of different races, creeds, and identities do live together in our cities? Against the backdrop of everyday life is there not a true plurality of subjects and ways of being? According to Rose, this plurality is an edifice. The scapegoat ritual "founds and re-founds" the mimetic violence of the "social order by instigating difference" disguised as true subjective plurality (Rose, 1992, 155). Rather than ontological subjectivity there is only a nominal particularity; 'difference' is what is offered under the absolute regime. The ritual sacrifice substitutes 'difference' for authentic, subjective particularity because, in the words of Zizek, this alleged, "…thriving of differences relies on an underlying One, that is, on the radical obliteration of Difference."[34] What the introduction of a "…thriving multitude... effectively [asserts] is the exact opposite: underlying all-pervasive sameness…"[35]

This is the most insidious violence of the modern city: the inclusion which exorcises any real particularity revealing itself as total exclusion. Gillian Rose understood this substitution of subjectivity for 'difference' to be a pseudo-ethics[36] that reduces societal. brokenness to 'social struggle' deploying a false concern for the individual all-the-while condemning their particularity before the universal by requiring the disintegration of the subject in the ritual sacrifice.[37] Once the scapegoat's identity is fully externalized, fully subsumed in the absolute, once the

[29] Rose, *The Broken Middle,* 105.
[30] Ibid., 112.
[31] Andrew Shanks, *Against Innocence: Gillian Rose's Reception and Gift of Faith*(London: Scm-Canterbury Press, 2008), 30.
[32] Rose, *The Broken Middle*, 249.
[33] Ibid., 264.
[34] Slavoj Zižek, *Interrogating the Real: Selected Writings* (New York: Continuum, 2006), 324.
[35] Ibid., 324–25.
[36] Rose, *The Broken Middle*, 279.
[37] Ibid., 182.

particularity is lost, the scapegoat has also lost their ability to shoulder the sacrificial burden of the subject before the law— which was the original transgression.[38] Only the individual subject can be guilty before the law and it is therefore the individual subject who must be justified by the sacrifice. In the sacrifice, the original transgression of one is ritually transferred into the transgression of all, as all become the transgressor and the victim is transfigured into the scapegoat. So as violence spreads to all the law is given to all, and all transgress the law in the violent attempt to make the sacrifice of the scapegoat stand for all. But sacrifice cannot be made beyond the law. The altar can never be set outside the requirements of the law it is trying to overcome. It is a part of the law. This is the curse of the law— it extends to all, and none are innocent of it, and therefore it is said the sacrificial scapegoat remains cursed even as they are placed on the altar.[39]

The homicide in Minneapolis has called forth the greatest fantasies of totalization and redemption from the sacrificial beyond, that the corruptible might be made incorruptible, the natural might be transmuted into the spiritual, that a holy city, a New Jerusalem would come down out of heaven to rest between the beginning at the individual and the final rapture into ethically pure categories. But as Derrida, reflecting on Kierkegaard, reminds us: only a pseudo-eschatology would suggest an "end of ideologies, of the death of philosophy, of the end of systems" after which will remain only "the barest foundation of the social bond... the "pure relation to the other" "on which everything else will have to be reconstructed."[40] This is the inversion of the sacrificial demand for universal relations, the deconstruction of all universal relations suggesting every relation is, in fact, totally particular.

At first an altar is constructed on the mountain beyond the city walls. Once the mountain is scaled, the view from the top reveals that the city walls extend beyond the horizon. So, the people believe they must internalize the absolute to escape it. They say, echoing Kafka, there is, in fact, no city because the city is all there is. We are all on our own Mount Moriah(s). We are all before a law written just for us.[41] But this is paradoxical. Turning back to Kierkegaard, it is the law that says, "…the ethical as such is the universal, and as the universal it applies to everyone", and "…the single individual is the particular that has its *telos* in the universal, and the individual's ethical task is always to express himself in this, to abrogate his particularity so as to become the

[38] See: Jacques Derrida, *The Gift of Death*. Religion and Postmodernism (Chicago: University of Chicago Press, 1995).
[39] Galatians 3:13.
[40] Derrida, "Above All, No Journalists", 64.
[41] Franz Kafka, *The Trial* (Ballingslöv, Sweden: Wisehouse, 2016), 121.

universal." In this way the absolute is never absent in the relation between two individual subjects, though it may be "latent... concealed".[42] This also means any 'minimum' of relation will not remain "just between us", as Derrida suggests it might. Indeed, relations cannot remain "absolutely invisible, singular, unique"[43], but they are always and constantly unfolding into each other to form a whole and back into the particular, and it is in this broken middle of unfolding between the law and the victim where we find the possibility of a third space.[44]

5.

To seek the voice of the other – to try and "dwell together in unity"[45] – is at once a political act requiring the creation of a space of encounter and a theological act requiring the interpretation and 'working out'[46] of this middle space of encounter made possible by faith. Rose writes, "[T]o adopt the standpoint of faith is to be willing to stake oneself in the middle, between the arbiter of law (the sovereign will) and the victim. Faith is this in-between: to occupy the middle is to take precisely a stance on love and violence. Faith acknowledges violence in love and the love in violence because the law is in both…"[47] The middle must be made. And then it must be discovered and rediscovered all over again so that the truth of the individuals' encounter is not transformed into knowledge and then immutable law, but instead is preciously and precariously held inwardly between the subjects by faith.

The Apostle Paul describes this kind of faith in his letters. He proposes that the church, inaugurated in God in Christ, is the space of encounter where the 'already-not-yet' political tensions of the real ethical brokenness of the city and metaphysical possibilities of the redemption of the subject are united and sustained through Christ's incarnation, death, and resurrection in the church.[48] The church becomes the body in the broken middle between law and the victim through its participation by the Holy Spirit in its members uniting themselves to Christ through faith.[49] The broken middle is founded in God in Christ crucified;

[42] Kierkegaard, *Fear and Trembling*, 88.
[43] Derrida, "Above All, No Journalists", 57.
[44] Rose, *The Broken Middle*, 148–49.
[45] Psalm 133:1.
[46] Philippians 2:1-2.
[47] Rose, *The Broken Middle*, 148.
[48] "The Church, without being exactly co-extensive with the Mystical Body, is not adequately distinct from it... For this reason it is natural that between her and it – as within the mystical Body itself between the head and the members – there should arise a kind of exchange of idioms: *Corpus Christi quod est ecclesia.*" Henri de Lubac, *Catholicism: Christ and the Common Destiny of Man* (San Francisco: Ignatius Press, 1988), 72-73.
[49] Galatians 2:20.

discovered and rediscovered over and again through the ritual, sacramental acts of the faithful joining themselves to this death and resurrection.

Paul describes this remaking of the individual subject into the new body of the church as an overcoming of the panoptic law that divides and precludes the Other through the person of God in Christ Jesus who unites: "…he has made known to us the mystery of his will, according to his good pleasure that he set forth in Christ, as a plan for the fullness of time, to gather up all things in him, things in heaven and things on earth."[50] And what is this overcoming of the law, this gathering up? Is it to foreclose and escape the brokenness of the middle? No, for Paul it is, like Christ in his incarnation, to dwell in – even to revel in – the brokenness middle:

> "But we have this treasure in clay jars, so that the extraordinary power belongs to God and does not come from us. We are experiencing trouble on every side, but are not crushed; we are perplexed, but not driven to despair; we are persecuted, but not abandoned; we are knocked down, but not destroyed, always carrying around in our body the death of Jesus, so that the life of Jesus may also be made visible in our body. For we who are alive are constantly being handed over to death for Jesus' sake, so that the life of Jesus may also be made visible in our mortal body."[51]

Indeed, Paul claims across his letters nothing less than that the secret told to Abraham on Mt Moriah has been made known to everyone through the incarnation of God in Christ Jesus. The silence has been shattered by the annunciation of God's incarnation in flesh, "He is the image of the invisible God, the firstborn of all creation… For in him all the fullness of God was pleased to dwell, and through him God was pleased to reconcile to himself all things, whether on earth or in heaven…"[52] The crisis of the aphasic subject is overcome by the mediation of the God in Christ who fills the void of absence and silence with the fullness of the 'new creation'[53] of 'one body'.[54] The contrast here could not be more stark: in Exodus, Abraham is told by God to sacrifice his son and keep it secret to foreclose any interpretation of the encounter between divine and human behind a veil of exclusivity and unintelligibility. In Paul's epistle to the Romans, God sacrifices his own son and proclaims it to the world in order

[50] Ephesians 1:9-10.
[51] 2 Corinthians 4:7-11.
[52] Colossians 1:15, 19.
[53] 2 Corinthians 5:17.
[54] 1 Corinthians 12:12.

to found a new body politic in the spiritual body, the Church, of the crucified Christ. Troels Engberg-Pederson reflects on this:

> "The Christ event was the means by which God aimed to achieve this end. Christ himself gave up his own exalted status, became a human being, died, and was resurrected. The proper reaction on the part of human beings to experiencing the shattering event of the resurrection was that human beings would similarly give up the directedness toward their individual selves…"[55]

In the axial passage of his corpus in Romans 8 he writes, "For God has done what the law, weakened by the flesh, could not do: by sending his own Son in the likeness of sinful flesh, and to deal with sin, he condemned sin in the flesh…"[56] What the *nomou* (the law) was *ēsthenei* (weak and incapable of doing), could only be done through incarnation. The *logos* is often understood as divine reason or divine speech, the foundation of the text, and the law as *nomou*, as it is called in Romans 8, refers to the everyday rules and convention of what is acceptable in a certain place and time, the literal text itself.[57] The *nomou* is not absolute but is a mutable 'frame of reference' which "held us captive"[58] within our own horizons. And it is this law that reveals the dual nature of the subject that tries to bifurcate mind and body by setting them in antagonism towards each other:

> "I do not understand my own actions. For I do not do what I want, but I do the very thing I hate. Now if I do what I do not want, I agree that the law is good… For I delight in the law of God in my inmost self, but I see in my members another law at war with the law of my mind, making me captive to the law of sin that dwells in my members. Wretched man that I am! Who will rescue me from this body of death?"[59]

Emma Wasserman notes, "…it is not the same 'I' but rather the mind and the inner person that want the good and sin and flesh that bring about evil. The result is that the 'I' really does not do the things that the body – taken as a whole – does, because sin

[55] Troels Engberg-Pederson, "Paul and Universalism." in *Paul and the Philosophers* (New York City: Fordham University Press, 2013), 94.
[56] Romans 8:3.
[57] See discussion in: Ritu Birla. "Performativity between Logos and Nomos: Law, Temporality and the Non-Economic Analysis of Power." *Columbia Journal of Gender and Law*, October 1, 2011, Vol. 21 No. 2 (2011)
[58] Romans 7:6.
[59] Romans 7:15–16, 22–24.

imprisons and enslaves the 'I'."[60] And she continues, "Whereas verses 14-20 establish the problem of self-contradiction, Verses 21-25 bring this problem back to the issue of God and God's law. Verse 21 restates the contradiction in terms of two competing laws or principles, one in the body, and the other in the mind or inner person."[61] And Paul states this explicitly later in the passage, "For I delight in the law of God in my inmost self, but I see in my members another law at war with the law of my mind, making me captive to the law of sin that dwells in my members… So then, with my mind I am a slave to the law of God, but with my flesh I am a slave to the law of sin."[62]

In this passage the *nomo Theou* – the law of the mind, reason and intellect, the source of the "I think, therefore I am" – obeys the command to keep God's secret utterance safe, but only because the law of the flesh, of the body in the world, is powerless to speak. The two laws stand in antagonism toward each other but work in concert to maintain the silence. But importantly, like Gillian Rose, Paul does not suggest a solution where one law overcomes the other – heals the other – and this is where he leads us beyond the archaic possibilities of totalitarianism or nihilism back into the broken middle. In Romans 8 he suggests an altogether more revolutionary approach in which the *nomos tou pneumatos* frees us from the old antagonisms of the *nomou ten hamartias* and *tou thanatou*. We remain subjects under the law, as Rose sees as a necessity, but under a new law of the Spirit:

> "For the law of the Spirit of life in Christ Jesus has set you free from the law of sin and of death. For God has done what the law, weakened by the flesh, could not do: by sending his own Son in the likeness of sinful flesh, and to deal with sin, he condemned sin in the flesh, so that the just requirement of the law might be fulfilled in us, who walk not according to the flesh but according to the Spirit."[63]

Richard Hays reminds us Paul's goal here in Romans seems to be an attempt to work out an understanding of the relationship between his own participation in the Jewish covenant and the good news of the Jewish Messiah for the gentiles in which the two halves of humanity are unified into a shared new covenant

[60] Emma Wasserman, "Paul Among the Ancient Philosophers." in *Paul and the Philosophers* (New York City: Fordham University Press, 2013), 76–77.
[61] Ibid., 77.
[62] Romans 7:22–23, 25.
[63] Romans 8:2-4.

family that can return to full fellowship with Yahweh.[64] And of course, this theme is readily supported by a plain reading of Paul himself in other letters like Ephesians, "But now in Christ Jesus you who once were far off have been brought near by the blood of Christ. For he is our peace; in his flesh he has made both groups into one and has broken down the dividing wall, that is, the hostility between us. He has abolished the law with its commandments and ordinances, that he might create in himself one new humanity in place of the two, thus making peace, and might reconcile both groups to God in one body through the cross, thus putting to death that hostility through it."[65]

Rose is critical of recent attempts by theologians to address the problems of the modern city precisely because they attempt unwittingly to prematurely mend the broken middle. This reading of Paul – of freedom for the subject through the founding of a new society under a transfigured law in the broken middle – also directly challenges what Rose also calls out at length in *The Broken Middle*: modern Protestant "a/theology" and Catholic "post-modern 'Beyond Secular Reason'"[66] theologies that have emerged proclaiming "new Jerusalems" of either "Dionysian joy… that breaks the power of law" or "law subdued… peace that is beyond even the violence of legality."[67] For the former Protestant theologies, "economies of domination will crumble" for the latter Catholic strains, "salvation must mean liberation from political, economic and psychic *dominium*, and therefore from all structures belonging to the *saeculum*."[68] But neither, as Rose concludes, have any interest in the broken middle itself. They quickly devolve into the same old competing categories of nature vs freedom, ecstatically "loving the world" beyond law or vaunting an eschatological peace through continuity with "untarnished ecclesial practice".[69] Ultimately, however, Rose sees these as reinstating the "…the age-old opposition between law and grace, knowledge and faith…"[70]

Indeed, this anti-theological interpretation of Paul can be taken further if Emma Wasserman's notion of the two laws – of the flesh and of the mind – is tied back into Rose's diremption of political categories of absolute law and absolute nihilism as Jew and Gentile respectively. Both represent a weakness in the law that must be overcome. For the Jews, it is the law of the flesh,

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[64] Richard B Hays, "'Have We Found Abraham To Be Our Forefather According To the Flesh?' A Reconsideration of Rom 4:1." *Novum Testamentum* 27, no. 1 (1985), 84–86.
[65] Ephesians 2:13–16.
[66] Rose, *The Broken Middle,* 278.
[67] Ibid., 281-282.
[68] Ibid, 284.
[69] Ibid.
[70] Ibid., 282.

those to whom were given the "handwriting of requirements"[71], and for the gentiles it is the law of the mind, those, "...who do not possess the law, do instinctively what the law requires, these, though not having the law, are a law to themselves. They show that what the law requires is written on their hearts, to which their own conscience also bears witness…"[72] The effect of this surprising presence, incarnation, is the unification of the two halves of humanity – Jew and gentile – into one whole body, in the broken middle, through the *nomos tou pneumatos*, the law of the spirit of the crucified Christ, "As many of you as were baptized into Christ have clothed yourselves with Christ. There is no longer Jew or Greek, there is no longer slave or free, there is no longer male and female; for all of you are one in Christ Jesus." [73] And Louis-Marie Chauvet points out that Paul's suggestion of the possibility of this unification in the broken middle in the broken body of Christ, "...radically subverts the existing system; it attacks it decisively at its very root… because from now on God directly rejoins God's people – the Gentiles as well as the Jews – in the risen Christ and by the gift of the Spirit."[74]

This is not merely anecdotal for Paul but remakes his own history as a faithful Pharisee into the broader story about how Christ the *logos*, Speech as the divine Word, becomes human subject and dwells in flesh in order to overcome the absence of the divine subject in the text exposed by *nomou*.

> "What then are we to say was gained by Abraham, our ancestor according to the flesh? For if Abraham was justified by works, he has something to boast about, but not before God. For what does the scripture say? 'Abraham believed God, and it was reckoned to him as righteousness.' Now to one who works, wages are not reckoned as a gift but as something due. But to one who without works trusts him who justifies the ungodly, such faith is reckoned as righteousness."[75]

For Paul, it was not that Abraham did not understand the secret or that he was justified by keeping the secret, it was that the secret was unutterable until it was made into *logos*, and *logos* became flesh and that now revealed secret Word was broken in the publicity of the crucifixion. Where the two laws once conspired to coerce the subject to silence, through the remaking of the secret into the Word made flesh, the two laws are

[71] Colossians 2:14.
[72] Romans 2:14-15.
[73] Galatians 3:27–28.
[74] Louis-Marie Chauvet, *Symbol and Sacrament: A Sacramental Reinterpretation of Christian Existence.* (Collegeville, MN: Liturgical Press, 1995), 252-253.
[75] Romans 4:1-5.

themselves remade into the law that reveals the secret through its fulfillment in the crucified God in Christ, "Thus the law had become our guardian until Christ, so that we could be declared righteous by faith."[76] Turning again to Chauvet, "…where the spirit of the [old] Law always consisted, finally, in hoisting oneself up towards God by one's own fingernails, that is to say, by accomplishing works (which in the realm of ritual prescriptions required the presence of a priestly [police] caste between the people and God, the law of the Spirit reverses this perspective. It is no longer a question of 'ascending' to God… From now on it is a question of welcoming salvation from God's self, fundamentally bestowed as grace 'descended' upon us in Jesus."[77]

Recognizing this downward movement into the broken middle spaces of earthly life, Jürgen Moltmann remarks, "The 'history' of God cannot therefore be separated from the history of his people. The history of the divine *pathos* is embedded in this history of men."[78] Paul's message is not a metaphor. For him, the law of flesh literally entraps the subject in silence, the law of the spirit instituted in Christ on the Cross brings speech, disclosure, and therefore true life.[79] Only God could tell the secret of faith he gave to Abraham on Mt Moriah because it is only through the Word made Flesh, language made into subject, that it could be revealed. Paul's concern is not in evacuating God's people from the world, ascending off the top of Mount Moriah to find the divine vice, but in the material and political necessity of the divine voice coming down the mountain and dwelling with his people through his incarnation in the Church.[80] In the incarnation of the divine Word the secret of faith has been made known to all, and the broken middle space of shared subjectivity has been reinstated in the incarnate, broken body of God in Christ over and against the authoritarian power and condemnation of absolute law.[81]

Moltmann goes on to remark on the significance of this, "Man is taken up, without limitations and conditions, into the life and suffering, the death and resurrection of God, and in faith participated corporeally in the fullness of God."[82] And this full participation, as Jesus himself said, is a taking up a cross and being united to him in his death, in the broken middle space of the cross where the possibility of heaven and the reality of earth are united in the body of the crucified Christ. As Moltmann

[76] Galatians 3:24.
[77] Chauvet, *Symbol and Sacrament,* 252.
[78] Jürgan Moltmann, *The Crucified God.* (London: SCM Press, 2015), 280.
[79] Ibid., 86.
[80] See discussion in: Blanton, *A Materialism for the Masses*, 189-194.
[81] Romans 3:19-21.
[82] Moltmann, *The Crucified God,* 286.

concludes with his own reading of Paul, "Christian faith does not believe in a new 'idea' of God. In the fellowship of the crucified Christ, it finds itself in a new 'situation of God' and participating in that with all its existence."[83]

Corporeal participation in the fullness of God is ultimately the same fullness God revealed in Christ: a rejection of innocence – the absolute rationality of law and justification only before the law, ignorance – the isolation of individualism or nihilism, and instead a full embrace of the anxiety of being ("my God, my God…"[84]) that is fully aware of the possibilities on either side, but chooses to dwell in the social and political actualities of the broken middle between them. It is this language, this body, which provides a space of stubborn opposition to the totalitarianism or utopianism of modern political discourse in all its forms. For Paul in practice this meant living always in the incarnation of the broken body of Christ in the 'already-not-yet' tension of the middle between heaven and earth; in "… the Church which lives and painfully professes in our poor world is the very same that will see God face to face. In the likeness of Christ who is her founder and her head, she is at the same time both the way and the goal; at the same time visible and invisible; in time and in eternity… the sinner and the saint."[85] Or, as Rose poetically frames it, "… to challenge the prevailing intellectual resignation; to urge comprehension of diremption in all its anxiety and equivocation; to aim- scandalously – to return philosophy from her pathos to her logos. In this way, we may resume reflexively what we always do: to know, to misknow and yet to grow."[86]

## 6.

Deeply philosophical and political questions are always already theological. *In The Broken Middle*, Rose is trying to think about how the abstract claims of philosophy and theology relate to our world, but not to try and overcome prematurely foreclosed contradictions between these but to dwell in the broken space where the two meet. In this way there is an ethical significance simply to experience the struggle, the agony of working out the brokenness. For Paul this was certainly true, "…for he has graciously granted you the privilege not only of believing in Christ, but of suffering for him as well—"[87] And while Rose

[83] Ibid., 284.
[84] Matthew 27:46.
[85] De Lubac, 73-74.
[86] Rose, 310.
[87] Philippians 1:29.

articulates clearly the ways the systems we work with are fundamentally broken, there is a sense in which she too is at a loss in *The Broken Middle* for what must be done to heal the relationship between philosophy and ethics, the abstract organizing principles of our society and the real encounter of people living in these systems.

Joshua Davis writes of Rose, "What interested her was not the absence or instability of trust, but the fact that unpredictability and even failure are essential aspects of all truth worthy of the name. For Rose, every act of communication or meaningful understanding entails a fundamental risk– of failure, falsehood, misunderstanding, devastation, loss. These acts have no sure place from which to begin or end, but all meaningful love, joy, and justice in the world is real because it was risked."[88] Paul calls this unsure place of beginning 'faith', to know and think of nothing but the incarnate body of Christ.[89] And Rose and Paul agree that all this kind of faith requires only the hardest thing: "a suspension of the ethical" in which "the single individual, becomes higher than the universal."

Abraham understands this as he journeys up Mount Moriah. His offering was not the child, Isaac, the individual one being sacrificed at the beckons of the universal. Nor was it the sacrifice of the ethical universal for the sake of a special relationship between Abraham and God. The offering was of the man who resigned his rightful claim to both the universal and the particular. It was the divine person alone who can say of this sacrifice of himself, "…no one takes it from me, but I lay it down of my own accord" [90]; who can overcome its violent repetition. This is the teleological suspension of the ethical in the broken middle between the universal law of the state and the particularity of the individual.

The suspension of the ethical is not synonymous with "the renunciation of the ethical"[91], its postponement, or deferral, but in the literal hanging in the tension between law and the individual what is sought is the "actualization... of the ethical"[92]; i.e., relations with the singular, particular "other" which unfold into the fullness of the universal. It is an openness to "the other" called "faith"[93], "the movement of infinity", possible, believable only "on the strength of the absurd."[94] It is the substantive alternative which supersedes the antagonism between the

[88] Davis, Joshua B., ed. *Misrecognitions: Gillian Rose and the Task of Political Theology* Eugene, Oregon: Cascade Books, 2018), 3.
[89] 1 Corinthians 2:1-2.
[90] John 10:18.
[91] Rose, *The Broken Middle*, 55.
[92] Ibid., 13.
[93] Ibid., 95.
[94] Kierkegaard, *Fear and Trembling*, 69.

repetitive ritual violence of the universal and the non-ethics of justice before the law. To make this movement is to accept and even invite the difficulty of dwelling within the political community of the *polis*. Understanding that devalues the embodiment of the subject leaves themselves open to totalitarian seizure of all social arrangements and authentic subjectivity.

Instead of closing the walls of the city – cordoning ourselves off from the outside inside a totalitarian absolute law – the gates must be thrown open. Not negligently or wistfully, of course. Though the gates are opened, the walls – the law – remain intact. We remain fully aware of the excitements and dangers of arrogating to the totalizing powers, but we outflank and out-narrate these at every instance by suspending them in the broken middle between the law and ethics in the crucified body of Christ that is the church, in the open space of faith below the sacred mountain-top of Moriah, taming the wilderness and wildness of the encounter on a thousand Canfield Drives between a million George Floyds and Derek Chauvins.